

SENATE No. 358

The Commonwealth of Massachusetts

PRESENTED BY:

Paul R. Feeney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to improve access, opportunity, and capacity in Massachusetts vocational-technical education.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>2/4/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/4/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/4/2025</i>
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	<i>2/4/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/4/2025</i>
<i>John C. Velis</i>	<i>Hampden and Hampshire</i>	<i>2/12/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>2/13/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>3/2/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>3/12/2025</i>
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>4/8/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>4/8/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>4/8/2025</i>
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	<i>7/29/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>10/2/2025</i>

SENATE No. 358

By Mr. Feeney, a petition (accompanied by bill, Senate, No. 358) of Paul R. Feeney, Steven George Xiarhos, James B. Eldridge, Michael D. Brady and other members of the General Court for legislation to improve access, opportunity, and capacity in Massachusetts vocational-technical education. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 274 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve access, opportunity, and capacity in Massachusetts vocational-technical education.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1.

2 EXECUTIVE OFFICE OF EDUCATION

3 Office of the Secretary

4 XXXX-XXXX For a competitive grant program to be administered by the executive
5 office of education, in consultation with the executive office of economic development and the
6 executive office of labor and workforce development, to provide capital and equipment funding
7 to expand high quality Chapter 74 career technical education and training programs in high-
8 demand, high-wage fields that are aligned to the commonwealth's Regional Labor Market

9 Blueprints; provided that grant funds may be used for capital and equipment expenditures
10 including, but not limited to, construction of additions or new buildings, start-up lease
11 costs, improvement of existing infrastructure, demolition and removal of existing structures, and
12 purchase of equipment; provided further that grant funds may not be used to pay staff salaries,
13 professional development costs, or travel expenses, purchase school vehicles, or to offset
14 overhead costs; provided further, that vocational technical schools, agricultural high schools, and
15 comprehensive high schools offering no less than five Chapter 74 programs shall be eligible for
16 funds from this program; provided further, that eligible recipients shall be located in regions of
17 the commonwealth with wait lists for enrollment in Chapter 74 programs; provided further, that
18 funds may support the duplication by a comprehensive high school of existing Chapter 74
19 programs within a regional vocational-technical school district so long as there is demonstrated
20 student and labor market demand for said program and the regional vocational-technical school
21 district is unable to meet said demand; provided further, that preference in awarding grants shall
22 be given to: (i) schools serving Gateway Cities, (ii) schools with existing Chapter 74 programs in
23 high-demand, high-wage fields that have an excess of applications over seats, (iii) schools with
24 demonstrated strong connections to regional employers, and (iv) schools which have received
25 Chapter 74 program approval by the Department of Elementary and Secondary Education and
26 have a demonstrated ability to promptly expand capacity to implement said program; provided
27 further, that no individual grant award shall exceed \$25,000,000; provided further that initial
28 term of said grant program shall be three years; provided further that not less than \$100,000,000
29 shall be awarded per year during the initial term; and provided further, that the executive office
30 of education, in consultation with the executive office of economic development and the

executive office of labor and workforce development, shall adopt additional guidelines as necessary for the administration of the program.....\$300,000,000

SECTION 2. Section 10 of Chapter 70B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following new subsection:

(d) Notwithstanding any state law, state regulation, or agency policy to the contrary, the authority shall be authorized and directed to add twenty (20) percentage points to the project reimbursement rates for regional vocational-technical high school and county, regional and independent agricultural high school construction so that reimbursement rates for such projects are not less than 75% nor more than 90% of the eligible costs. Further, the authority shall add five (5) percentage points to the reimbursement rate for any project that includes state-approved vocational-technical education programs as defined in Chapter 74 of the General Laws aligned with priorities specifically identified in the Regional Labor Market Blueprint for the region in which the school is located. However, additional percentage points shall not be awarded unless the school currently offers five (5) or more Chapter 74 programs. In no case shall the total reimbursement for a project exceed 90% of eligible costs.

SECTION 3. Chapter 69 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following sections:-

Section 38. For the purposes of sections 38 and 39, inclusive, the following terms shall have the following meanings, unless the context clearly requires otherwise:-

“District of residence”, shall mean the school district of the city or town where a student resides.

“School of residence”, shall mean the middle school or junior high school a student attends within their district of residence.

Section 39. (a) The department of elementary and secondary education shall develop and implement policies and promulgate regulations to promote, enhance, and expand vocational-technical education programs, as defined in Chapter 74 of the General Laws, in the commonwealth.

(b) The department shall:

(i) oversee all Chapter 74 approved programs and ensure compliance with M.G.L. Chapter 74 and related regulations;

(ii) work to increase awareness of vocational-technical education and career opportunities among students in elementary schools, junior high schools, and middle schools;

(iii) ensure that schools offering Chapter 74 programs are provided reasonable access during the school day at schools of residence to meet with all students and distribute information about vocational-technical education and careers to said students, including English language learners, students with disabilities, students of color, and other student populations, to ensure that such information is provided equitably to all learners;

(iv) ensure that schools offering Chapter 74 programs are given the opportunity during the school day to host middle school tours, with transportation costs paid by the school hosting the tour, for all middle school students in member communities, including English language learners, students with disabilities, students of color, and other student populations to ensure that such opportunities are provided equitably to all learners; and further ensure that the school of

residence may not count middle school student tours of vocational schools or programs during the school day as unexcused absences if the vocational school or program confirms the student's participation, and may not unreasonably withhold student access to tours of vocational schools and programs during the school day.

(v) require that schools offering Chapter 74 programs are given the opportunity to provide middle and junior high school students with information about vocational-technical programs and careers through mail and email.

(vi) require all middle schools and junior high schools in member communities to establish and implement a Chapter 74 Access Policy, in accordance with state requirements promoting equitable access to Chapter 74 programs, outlining specific ways in which the middle schools will collaborate with regional vocational-technical high schools and agricultural high schools to: provide staff members from Chapter 74 schools with direct school day access to all middle school students, to inform them about opportunities in vocational-technical and agricultural education and to distribute materials about such opportunities to them; provide all middle school students an opportunity to tour, during regular middle school hours, the regional vocational-technical high school and/or county agricultural school of which the middle school's city or town is a member, with the transportation costs of all such tours being borne by the school hosting the tours; provide contact information for all seventh grade and eighth-grade middle school students, including a student's name and mailing address, a student's personal email address, and the parent's/guardian's email address by October 15 of each school year;

(vii) establish, in addition to the minimum requirements outlined in the preceding subsections, such additional requirements for Chapter 74 Access Policies as the office deems

reasonable and necessary to promote equitable access by all students to information about vocational-technical and agricultural education;

(viii) require all sending school districts which are members of a regional-vocational school district or whose community is located in the county or district of an agricultural high school to submit the Chapter 74 Access Policy annually to the department; annually attest in writing that the Chapter 74 Access Policy is being implemented equitably and that all students are being provided with information, access, and tours in accordance with this section and with federal and state civil rights laws, regulations, and policies; and post the Chapter 74 Access Policy on its district website and provide written copies to students and parents, upon request;

(ix) create a mechanism to enforce timely implementation of Chapter 74 Access Policies;

(x) establish a system to ensure that students who live in communities that are not members of or affiliated with a regional vocational-technical high school district or agricultural high school annually are provided with information about their high school options, including their option to seek an education in a vocational-technical or agricultural high school;

(xi) provide technical support to schools seeking to offer Chapter 74 programs that meet regional labor market demands and do not duplicate existing programs in the region;

(xii) support the continuation of state grant programs that provide funding for equipment purchases and facility expansion; and

(xiii) support the continuation of demonstration programs that provide opportunities in vocational-technical education for students unable to secure a seat in an approved Chapter 74 program due to lack of enrollment capacity.

SECTION 4. Chapter 70B of the General Laws is hereby amended by striking out Section 1A(b), as appearing in the 2022 Official Edition, and inserting in place thereof the following:-

(b) The authority shall consist of the state treasurer, who shall serve as chairperson, the secretary of administration and finance, the commissioner of education, and 4 additional members appointed by the state treasurer, 2 of whom shall have practical experience in educational facilities planning, school building construction, or architecture and school design, 1 of whom shall be a person in the field of education with demonstrated knowledge of Massachusetts curriculum frameworks and other relevant federal and state educational standards, and 1 of whom shall be a person in the field of vocational education with demonstrated knowledge of Massachusetts Chapter 74 vocational education curriculum frameworks and other relevant federal and state vocational educational standards, each of whom shall serve a term of 2 years; but, a person appointed to fill a vacancy shall serve only for the unexpired term. An appointed member of the authority shall be eligible for reappointment. The authority shall annually elect 1 of its members to serve as vice-chairperson. Each member of the authority serving ex officio may appoint a designee pursuant to section 6A of chapter 30.

SECTION 5. Section 3A of Chapter 70B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking the number “17” and inserting “19” in place thereof, and further by inserting, after “Fire Chiefs' Association of Massachusetts, Inc.” the

following:- “,Massachusetts Association of Vocational Administrators, Inc., Alliance for Vocational Technical Education,”.

SECTION 6. Subsection (c) of section 14B of chapter 71 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out the third sentence and inserting in place thereof the following 2 sentences:-

“Notwithstanding any general or special law to the contrary, a city or town may simultaneously be a member of a vocational regional school district and any other type of regional school district. A city or town that belongs to a regional vocational school district may offer a vocational technical education program in its municipal high school; provided, however, that the program is approved under section 2 of chapter 74 of the General Laws; provided, further, that a vocational regional school district and any other type of regional school district serving the same town shall collaborate through the office of career technical education in offering reciprocal non-competitive programs under chapter 74 of the General Laws; provided, further, that there is demonstrated student and labor market demand for said program as determined by the Regional Labor Market Blueprint and the regional vocational-technical school district is unable or unwilling to meet said demand.”